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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1664**	**9387**	**11046**
Section 2	**344**	**1863**	**2206**
Section 3	**389**	**2067**	**2456**
Total	**2397**	**13317**	**15708**

Answer-to-Question-_1_

Courts won't shirk adjudication using the political question doctrine. They've been willing to speak on questions involving fundamental rights (*Hamdi*), federal-state disputes (*New York*), and laws where the President and Congress are in agreement (*Chadha*).

Immigration Assistance Reform Act (IARA)

States

Congress cannot commandeer the states qua states and govern them according to its instructions. The IARA would require state law enforcement officers (LEOs) to *enforce* federal law (*Printz*) upon federal instructions without any input from the states.

Congress could say IARA doesn't regulate states qua states because it applies also to private officers. A formalist court may read *New York* strictly to allow this escape hatch. Then, IARA would be constitutional, since it passed regular political channels (*Garcia*) with bicameralism and presentment (*Chadha*). But this is unpersuasive. Policing is traditionally left to *governments*, even if *some* private individuals engage in policing. Similarly, the *New York* court wouldn't have found it persuasive that some private actor that dispose of radioactive waste exist.

In response, Congress could invoke its plenary immigration powers (*Chae*). Even if commandeering is *normally* disallowed, it may be necessary and proper (*McCulloch*) for Congress to deputize state officials to regulate immigration. Congress could also draw on other (stretch) sources to justify capacious power. Congress has the power to call forth *state militia* to execute "laws," (Art. I§8), and police officers are perhaps close cousin to militia. That, summed with plenary immigration powers, produces a greater *whole* (*Chae*) where Congress has powers to 'call forth' state police to enforce immigration *laws*. Congress could say there's no slippery slope beyond immigration, since there's a jurisdictional hook in IARA that only applies to "immigration enforcement assistance" (*See Scarborough*).

But Congress' authority doesn't justify commandeering. The specter of state sovereignty haunts the entire Constitution. States could use *National League*'s 10th Amendment reasoning to say policing is a traditional area of state sovereignty. *National League* was overturned by *Garcia*, but courts are still inclined to infer a protected sphere of state power (*NFIB*, *Civil Rights*). Courts will be hesitant to say otherwise given the accountability principles at risk with deputization. State citizens may be confused as to *who to blame* for the LEO's actions (*Lopez*) given the use of state officials to enforce a *federal* directive.

Also, IARA is hardly *de minimus*, since it deputizes *all* LEOs (*Printz*). It's also possible that IARA requires some states to violate *their* constitutions. If state executives also have unreviewable prosecutorial discretion

like the President (*Cox*), it might violate state Constitutions to force LEOs to investigate and detain migrants *without* the state executive's consent. But this final point is a stretch, since IARA only deputizes "police officers," so state executives can still exercise discretion in criminal prosecution.

Congress could say the 10th Amendment is a trusim that doesn't justify inherent state authority (*Darby*). But courts will disagree. They've consistently cited *Coyle* (albeit imprecisely) to say there are certain areas of inviolable state sovereignty contemplated by the Constitution. After all, the state sovereignty is deeply woven into the Constitution (See Enclaves Clause, Article V, Electors Clause). Even the militias clause contemplates the states' reserved powers to *appoint officers*.

Congress could cite past instances where state officials have been deputized. But previous consent isn't a shield against the unconstitutionality (*New York*). And the states certainly didn't consent to *all* LEOs being deputized in this way.

Congress could make a stretch argument that the LEOs aren't 'state officials,' (*Printz*) since they're empowered to act like federal immigration agents (§1B). So, LEOs are are akin to quasi-legislative or executive agencies (*CFPB*) under Congress' purview. This is unpersuasive. The *process* of making LEOs into federal immigration agents is still *commandeering*. Also, this argument would create another Constitutional problem, since "all" federal officials must be nominated by the President and appointed with the Senate's consent. The LEOs weren't appointed in this way and cannot be treated as quasi-legislative federal officials.

As a hail mary, Congress could cite other sources of authority. Spending power won't save them, though, since theres' no explicit spending provision. And there's no voluntary arrangement in IARA, which is inconsistent with the contractual nature of a spending power conditions (*Pennhurst*). There's no commerce clause parachute either, since immigration and law enforcement aren't inherently commercial (*Lopez* and *Morrison*).

<u>Natives</u>

Congress is on stronger footing, since they have exclusive and preclusive power to regulate relations with the tribes (*Worcester*). Tribes also aren't entitled to the same 10th Amendment protections nor zones of inherent sovereignty like the states are. They could make a stretch argument that tribes exist in the legal residuum left to the "people" in the 10th Amendment. But that isn't compelling. Tribes are treated as domestic dependent nations, not *states* or *non-native citizens* (*Lone Wolf*). The fact that the Framers *knew* how to specify the 'Indian Tribes' in the Commerce Clause, but failed to do so in the 10th indicates that they didn't intend this move.

Lastly, tribes could invoke *Montana*, which gives them authority to regulate affairs that are critical to their

inherent sovereignty. But the contours of such sovereignty aren't well defined. And it's unclear how courts would come out on this, especially given the lack of inherent protections for tribes in the past.

Liberty

Using LEOs to make arrests and detain individuals in §2B may violate habeas. Nothing in §2 says there must be an explanation *before* arrests or detentions are made. True, the law specifies that only individuals who are "lawfully suspected" of immigration violations will be detained. But the same protection isn't required for "arrests." And, it's unclear if this 'suspicion' requires a ruling by a neutral arbiter, as required for habeas (*Hamdi*).

Just as the President cannot use their Congressionally delegated power to exempt citizens from habeas protections (*Hamdi*), Congress cannot use local officials to circumvent such liberties. This would also magnify commandeering concerns if the states had *similar habeas provisions* in their Constitutions, which state officials would *violate* by complying with IARA.

Congress could say they suspended habeas with IARA. But that move is *also* unconstitutional, since habeas can only be waived in cases of rebellion, invasion, or when public safety may require it. If the War on Terror wasn't enough to justify removing protections (*Hamdi*), immigration problems probably don't clear the bar.

There's also a stretch *equal footing* argument (*Coyle*), since officials in states with stronger due process protections may be more at risk of acting unlawfully than those without. But this requires more information on those state Constitutions.

For similar reasons as the habeas violation, IARA may violate the 14th Amendment's equal protection and due process guarantees. If state officials are making arrests an detaining those suspected of immigration violations without due process, they would violate the 14th's protections.

But for both the 14th Amendment and Habeas, it's possible that the courts will *read in* a due process requirement into the law. They might avoid striking down the statute as unconstitutional given the lack of a clear statement that Congress intends to forgo due process or habeas protections (*Ashcroft*).

Severability

Courts could sever the 'arrests and detentions' requirement in §2B and possibly the state deputization requirement in §1A. It's not evident that Congress wouldn't have passed the IARA if it solely applied to native deputization and allowed those deputies to conduct investigations (*Chae*).

Executive Order (XO)

Enumerated Powers

The XO is within the president's enumerated powers. All executive powers are vested in the President and, here, the president is *taking care* to ensure the IARA is faithfully executed. Sure, the IARA may raise constitutional issues and there's no duty to obey unconstitutional laws (Dellinger), but the president isn't required to *forgo enforcing* such laws either.

The president could also invoke unreviewable prosecutorial discretion to justify their suspension of federal criminal enforcement for non-complying states (*Cox*). As a counter, the states could argue that by conditioning enforcement of *all federal crimes* on state compliance, the president is not taking care to faithfully execute *Congress' criminal statutes*. But the decision to *prosecute* is unreviewable and discretionary. Also, Presidential power here is at its highest, since the President is acting in concert with Congress (*Youngstown*).

Coercion

Even if prosecutorial discretion is a presidential power, however, coercing the states *using* prosecutorial discretion is unconstitutional. Similar to how Congress' spending powers are constrained by state sovereignty (*Steward*), the executive's powers may also be circumscribed by the same principles.

The President's best argument is that the XO preserves state choice (*Dole*), since the states could simply *refuse* to follow IARA and merely suffer a penalty. But the XO is out of step with state choice in other ways. It fails to provide adequate notice (*Pennhurst*), since the test for "fully comply" is unclear. States may lack notice as to *what degree of compliance* would cause them to suffer the penalty. Also, the XO's conditions might not sufficiently relate to its objectives (*Dole*), since the connection between *all federal criminal enforcement* to *immigration* prosecution seems tenuous. This is magnified by the fact that the *size* of the penalty is so large that no state could say no (*NFIB*). The XO might be a blank check for committing federal crimes, which states cannot bear. True, maybe state criminal laws sufficiently fill in the gaps. But that's unclear as of now. Lastly, the condition levied cannot be unconstitutional (*Dole*), so if the 14th Amendment and habeas concerns still exist, the states cannot be compelled to violate the Constitution.

Natives

Because the tribes lack the *same* sovereignty protections as states, the president might be permitted to coerce the tribes. As dependent states, the tribes have no right to the enforcement of federal prosecution (*Lone Wolf*), and federal prosecution of crimes is certainly not within a tribe's inherent rights to sovereignty (*Montana*).

This is a stretch but, the President may also invoke their diplomatic recognition powers (*Zivotofsky*), to say they have the power to *cease treating* the tribes as autonomous entities. Then again, Congress has plenary power here (*Worcester*), the president likely cannot do this.

----------ANSWER-1-ABOVE----------

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----------ANSWER-2-BELOW----------

Answer-to-Question-_2_

Trump held that former Presidents cannot be criminally prosecuted for official acts in office that fall within their exclusive and preclusive Constitutional authority.

The same protections may extend to a VP after leaving office because the VP is a creature the *President*, not just the executive branch. The strongest argument *against* this is that the Constitution *acknowledges* the VP as an executive actor, but *vests* "all" executive powers in the *President*. It follows, then, that *only* the President is entitled to immunities that flow from executive power.

But the VP's power is still *in the mold* of Presidential authority. For one, the VP is *checked by* the same mechanisms as the President. Unlike other executive officials who are *unelected*, the VP is elected with the President and held accountable by the electoral process. Like the president, the VP subject to Congress' will through impeachment, conviction, and removal.

The VP is also integral to an energetic executive branch (*CFPB*). The President often tasks the VP with *critical* national priorities, which requires speed and decisiveness. If this the president's agenda is hampered with *presidential* criminal prosecution, the *same* could be said of criminally prosecuting the VP.

Also, some argue that the President has complete, unitary control over the executive branch (*Hamdi* Thomas). Even if the VP lacks any *independent* authority, it follows, then, that the President acts *through* the VP whenever the VP is acting *executively*. So, when the VP exercises executive authority, they should be entitled to the same protections the President is.

Lastly, past practice offers some gloss (*Youngstown)*. No VP in American history (to my knowledge) has been prosecuted for a crime committed in office, despite *many* plausible claims that could be brought (for

instance, Cheney for Iraq).

Much like the President, then, the VP cannot be criminally prosecuted for official acts taken in office that fall within preclusive executive authority under the Constitution. But they can prosecuted for unofficial acts that don't involve exclusive executive authority, and they're only entitled to a presumption of immunity for the outer perimeters of their acts.

----------ANSWER-2-ABOVE----------

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----------ANSWER-3-BELOW----------

Answer-to-Question-_3_

There are two interpretations of 'the people.'

First, the reference to 'the people' only serves a symbolic function. It simply recognizes the *factual* truth that the Constitution was created by "the People" (Preamble). It's a truism that the 'people' have power in a democracy, much like how some courts have read residual state power as a tautology (*Darby*). This weak reading is also justified by passive phrasing. The Amendment reserves power to the states "*or*" the people. If 'or' is doesn't *mean 'and,'* there might be a world where the people *aren't* reserved any powers at all. Given this weak mandate, the provision plays no role other than recognizing that the U.S. is a democracy where the people play a role.

But another interpretation is possible.'The people' are more than a mere truism. Instead, it provides a *structural* filter for the entire Constitution. Within our Republican government, the people are like an omnipresent 4th branch that balances the other branches. They can elect, remove, and hold accountable state officials, Congressmen, and the President.

But we can go further than that. Rather than being a co-equal branch, 'people' are the *source* by which the other branches derive their power. In the Preamble, the "People," not the states nor another branch, "ordain[ed]" the Constitution. Any powers that aren't *explicitly given* by the people to the government are held by the people because they've always held the *reigns* of authority.

A skeptics might argue that if 'the people' played such an integral role, they would be referenced more *thoroughly* in the Constitution. If the people are *so critical*, why are they only mentioned *7 times*? This is

flawed reasoning, however. In practice, the 'people' are a constant guide for structural analysis. We see this when the courts define the *limits* of federalism using accountability to the *people (Lopez*). Same with the executive: presidential powers cannot eclipse individual liberties (*Hamdi*) and agencies cannot become *monarchs* too removed from public accountability (*CFPB*). Infringement on the *people's powers* can justify *limiting* the powers of the other branches.

The 10th Amendment recognizes that there's some inviolable power within the *people themselves* that the other branches *must* respect, much like how federal authority cannot encroach on certain spheres of state power (*Garcia*, *Coyle*). Like the states, the people occupy a legal residuum that goes beyond idle symbolism.